

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
COREY WILLIAMS,

Plaintiff,

-against-

CITY OF NEW YORK AND POLICE OFFICER
ANGELO SANTANIELLO, TAX REGISTRY
NUMBER 6234,Defendants.
-----X

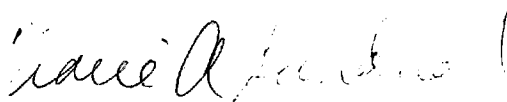
Index No.:

Date Purchased:

Plaintiff designates Queens
County as the place of trial.Basis of venue is place
of occurrence.SUMMONS

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
November 14, 2023

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.

By: Tracie A. Sundack, Esq.

Attorneys for Plaintiff

COREY WILLIAMS

180 South Broadway, Suite 306

White Plains, New York 10605

(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER ANGELO SANTANIELLO,
TAX REGISTRY NUMBER 6234,
100th Precinct
92-24 Rockaway Beach Boulevard
Queens, New York 11693

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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COREY WILLIAMS,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK AND POLICE OFFICER
ANGELO SANTANIELLO, TAX REGISTRY
NUMBER 6234,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff COREY WILLIAMS by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK and POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, respectfully alleges as follows:

1. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled The New York City Police Department, including all the police officers thereof.

3. That at all times hereinafter mentioned Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, was employed by Defendant CITY OF NEW YORK as a police officer.

4. That at all times hereinafter mentioned Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, acted within the scope of his employment for Defendant CITY OF NEW YORK.

5. That at all times hereinafter mentioned Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, was assigned to 100th Precinct (92-24 Rockaway Beach Boulevard, Queens, New York 11693).

6. That at all times hereinafter mentioned Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

7. On November 18, 2020, at approximately 5:30 A.M., Plaintiff COREY WILLIAMS was inside 8203 Beach Channel Drive in the County of Queens, City and State of New York when he was suddenly accosted by members of the New York City Police Department including Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234.

8. That, at the aforementioned date, time and place, Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, placed Plaintiff COREY WILLIAMS under arrest for Criminal Possession of a Weapon (2nd Degree) and Criminal Possession of a Firearm despite Defendant's knowledge that he lacked reasonable grounds or probable cause to do so.

9. That on November 18, 2020, at approximately 5:30 A.M., Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, forcibly, wrongfully and unlawfully arrested Plaintiff COREY WILLIAMS

10. Plaintiff COREY WILLIAMS was then transported to the 100th Precinct (92-24 Rockaway Beach Boulevard, Queens, New York 116930) where his arrest was processed. Subsequently he was transported to Queens Central Booking (125-01 Queens Boulevard, Queens, New York) for arraignment. Following arraignment Plaintiff COREY WILLIAMS was transported to Rikers Island.

11. That on November 18, 2020, Defendants CITY OF NEW YORK by and through its employees including Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, initiated criminal proceedings against Plaintiff LEEQUAN HARRINGTON despite Defendants' knowledge that they lacked probable cause to do so.

12. That on or about December 18, 2020, Plaintiff COREY WILLIAMS was released from custody following the posting of bail.

13. That on or about June 20, 2021, all criminal charges against Plaintiff COREY WILLIAMS were dismissed (Indictment Number 1262/2020 - Supreme Court of the State of New York - County of Queens).

14. As a result of the foregoing, Plaintiff COREY WILLIAMS sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

15. Plaintiff COREY WILLIAMS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

16. That on the aforementioned date and place, Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, placed Plaintiff COREY WILLIAMS under arrest despite Defendant's knowledge that he lacked probable cause to do so.

17. That Plaintiff COREY WILLIAMS had not committed any offense and Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

18. That Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, was aware that probable cause did not exist for the arrest and detention of Plaintiff COREY WILLIAMS and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendant acted with malicious intent to arrest, oppress, and injure Plaintiff COREY WILLIAMS and such actions were committed in bad faith.

19. That, in all of the wrongful acts above alleged, Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff COREY WILLIAMS and such actions were committed in bad faith.

20. As a direct and proximate result of the above-described unlawful and malicious acts of Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, all committed under color of his authority as a police officer, and while acting in that capacity, Plaintiff COREY WILLIAMS was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

21. As a further result of the above-described acts, Plaintiff COREY WILLIAMS was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

22. Plaintiff COREY WILLIAMS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

23. That Plaintiff COREY WILLIAMS was falsely imprisoned from approximately November 18, 2020, to December 18, 2020, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, who procured and/or effected said false imprisonment knowing his actions to be wrongful and malicious and without any basis.

24. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, intended to confine Plaintiff COREY WILLIAMS and Plaintiff COREY WILLIAMS was conscious of the confinement, and Plaintiff COREY WILLIAMS did not consent to the confinement.

25. That Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, words, actions, and the charges laid by him were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff COREY WILLIAMS and damaging Plaintiff COREY WILLIAMS in his reputation and depriving him of his liberty.

26. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, all committed under color of his authority as a police officer for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff COREY WILLIAMS suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

27. Plaintiff COREY WILLIAMS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

28. That Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, misrepresented and falsified evidence before the District Attorney.

29. That Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, did not make a complete and full statement of facts to the District Attorney.

30. That Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, withheld exculpatory evidence from the District Attorney.

31. That Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, was directly and actively involved in the initiation of criminal proceedings against Plaintiff COREY WILLIAMS

32. That Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, lacked probable cause to initiate criminal proceedings against Plaintiff COREY WILLIAMS

33. That Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, acted with malice in initiating criminal proceedings against Plaintiff COREY WILLIAMS

34. That Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, was directly and actively involved in the continuation of criminal proceedings against Plaintiff COREY WILLIAMS

35. That Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, lacked probable cause to continue criminal proceedings against Plaintiff COREY WILLIAMS

36. That Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, acted with malice in continuing criminal proceedings Plaintiff COREY WILLIAMS

37. That Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, misrepresented and falsified evidence throughout all phases of the criminal proceeding.

38. That, notwithstanding the perjurious and fraudulent conduct of Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, the criminal proceedings were terminated in Plaintiff COREY WILLIAMS's favor.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY**

39. Plaintiff COREY WILLIAMS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

40. Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

41. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited

to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

42. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff COREY WILLIAMS

43. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff COREY WILLIAMS as alleged herein.

44. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff COREY WILLIAMS as alleged herein.

45. Defendant POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 6234, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff COREY WILLIAMS's constitutional rights.

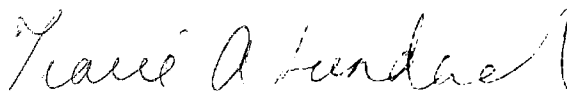
46. All of the foregoing acts by defendants deprived Plaintiff COREY WILLIAMS of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. Not to have cruel and unusual punishment imposed upon him;
- E. To receive equal protection under the law.

47. As a result of the foregoing, Plaintiff COREY WILLIAMS is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00)

WHEREFORE Plaintiff COREY WILLIAMS demands judgment against Defendants CITY OF NEW YORK and POLICE OFFICER ANGELO SANTANIELLO, TAX REGISTRY NUMBER 5234, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
November 14, 2023



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.

By: Tracie A. Sundack, Esq.

Attorneys for Plaintiff

COREY WILLIAMS

180 South Broadway, Suite 306

White Plains, New York 10605

(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

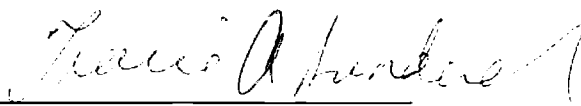
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
November 14, 2023



TRACIE A. SUNDACK

INDEX NO.:

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Plaintiff,

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ANGELO SANTANIELLO, TAX REGISTRY
NUMBER 956234,

Defendants.

SUMMONS & VERIFIED COMPLAINT**TRACIE A. SUNDACK & ASSOCIATES, L.L.C.**

Attorneys for Plaintiff

COREY WILLIAMS

180 South Broadway - Suite 306

White Plains, New York 10605

(914) 946-8100

To: **ALL PARTIES**

Service of a copy of the within

is hereby admitted

Dated:

Attorney(s) for

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated:

Signature: _____

TRACIE A. SUNDACK**PLEASE TAKE NOTICE**NOTICE OF
ENTRY

that the within is a (certified) true copy of a

entered in the office of the clerk of the within named court on

20

NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the

Hon.

at

20

,at

one of the judges of the within named Court,

M.

on

Dated: